FIELD CRIB SHEET · SIGNING AN AGREEMENT AT THE DOOR

Six things to get right at the door

FIRST, THE OPENING THIRTY SECONDS

Colorado makes it a deceptive trade practice to solicit door-to-door unless, **within thirty seconds of starting the conversation**, you say **who you are, who you represent, and why you are there**. Easy to fail by opening with a question instead. *"Hi, I'm ___ with Sixfold. We're booking fall aeration in this neighbourhood, and I'm stopping by to see if your lawn's on the list."*

Do not start cutting before the cancellation period is over.

Colorado law: **if the customer cancels, the seller gets no compensation for services already performed.** Not a reduced amount — nothing. Fell three trees on day one, they cancel on day two, and Sixfold has worked a free day and still owes the deposit back. **There is no waiver and you must never ask for one** — a clause waiving the right to cancel is prohibited, and asking is itself a violation.

And if the cancellation notice is missing, wrong or badly filled in, the three-day window **never starts** — the right to cancel then stays open for **three years**. A job signed today can be unwound in 2029, with no compensation for the work, because someone left a date blank.

Before you hand the paperwork over

1. **Date it the day they actually sign**
   Not the day you walked it or wrote the quote.
2. **Work out the deadline, and write it in three places**
   Midnight of the **third business day** after signing — any day except **Sunday and federal holidays**, so Saturday counts. It goes on page 2 section 6 and on **both** cancellation forms.
3. **Complete both cancellation forms before handing them over**
   Seller name, seller address, date of transaction, deadline date. The law requires you to fill these in, not the customer.
4. **Say it out loud**
   You must tell them verbally as they sign, not just point at the box. *"You have three business days to change your mind, and these forms are how."*
5. **Leave a signed copy and both cancellation forms**
   All five pages. They keep one form and send the other if they want out.
6. **If they cancel, refund everything within ten days**
   Deposit included, in full, no deduction. Tell the office the day it arrives.

Things not to say or do

- **Never say licensed, insured, bonded, certified or Firewise.** None of it is true yet.
- **Never promise a tax credit amount, a refund or an insurance discount**, and **never name a county cost-share** until Sixfold is on the approved list. Describe what a programme says; what they get is between them and their accountant or carrier.
- **Never agree to extra work verbally.** Scope and price changes go on a signed change order before the work, or it is not owed and you are the one arguing about it.
- **Never fill in a price the office has not agreed**, and never leave a signed agreement with the price blank.

Sources: 16 CFR Part 429 (FTC cooling-off rule for sales made at homes); C.R.S. 5-3-401 to 5-3-405 (home solicitation sales); C.R.S. 6-1-105 (1)(p) (door-to-door identification). Not legal advice — see the folder README for what still needs an attorney's eye.

STARTING WORK THE SAME DAY

You can start today. Decide what you will do for free.

Nothing in the law stops you starting the same day.

It only decides what happens to the money. **Cancel inside the window and you refund everything, paid nothing for work already done.** That is the whole exposure, and it is bounded by how much you chose to do in three days.

Sequence the job so the window costs least

Do first	Labour you would be repeating anyway if they cancel — hand thinning and limbing, lop and scatter, clearing the first five feet.
Hold back	Anything unrecoverable: **haul-off**, gone once it is tipped; **chipping**, where the cost is fuel and machine hours; **stump grinding**, which is irreversible.

STUMP GRINDING CANNOT BE SAME-DAY ANYWAY

Colorado requires notice to the notification association **at least two business days before excavation begins**, not counting the day the notice is given. The locate wait and the cancellation window run side by side, so grinding lands after both. That is scheduling, not a delay you have to explain.

Money, while the window is open

- **Take a small deposit, or none** — it comes back in full regardless, and a large one turns a cancellation into an argument. **Do not invoice for work done before a cancellation**; you are not entitled to it.
- **If they cancel: stop, refund within ten days, no deduction.** Tell the office that day.

The emergency exception — narrow, and all three must be true

1. **The customer contacted you**
   Not the other way round. **If you knocked on the door, this does not apply** — no exceptions.
2. **There is an actual emergency**
   A risk to health, safety or property that cannot wait three days — a hazard tree over a bedroom, storm damage.
3. **They write the statement themselves, by hand, dated and signed**
   Covering what the emergency is, why it cannot wait, that they are asking Sixfold to start now, and that they know they are giving up the three-day right.

YOU CANNOT HAND THEM A FORM FOR THIS

The statute only accepts a statement that is **not a printed form as to its material provisions** — that is the point of it. No template, no dictating the wording, nothing written out for them to copy. Tell them what it has to cover and let them write it. Colorado also requires Sixfold to make a genuine substantial start before any cancellation arrives.

WHAT IS NOT AN EMERGENCY

A canvassed job. Wanting it done before a party or a house sale. A good price today. Fire season in general — the exception is about *this* property, *now*. **If you are talking someone into calling it an emergency, it is not one**, and a wrongly claimed one is worse than waiting: the exception fails and the three-year window opens.

Sources: 16 CFR 429.0 (a)(3) and C.R.S. 5-3-402 (5) (emergency exception); C.R.S. 5-3-405 (3) (no compensation on cancellation); C.R.S. 9-1.5-103 (3)(b) (two business days' excavation notice). Not legal advice.